

**FIRST ENDORSEMENT**

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, April 4, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23395 against Sergeant Jonathan Rivera, Tax Registry No. 949550. The case was conferenced on March 10, 2022, before Assistant Deputy Commissioner of Trials Joshua Kleiman, who approved the negotiated penalty of *Reprimand*, after a guilty plea.

*Jonathan Darche*  
Executive Director

New York City Civilian Complaint Review Board



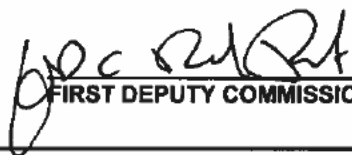


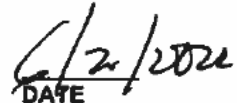
**DISPOSITION OF CHARGES**  
PD 468-142(Rev. 8-89)-2

|                                           |
|-------------------------------------------|
| <b>CASE NO.</b><br>2021-23395             |
| <b>BOOK &amp; PAGE NO.</b><br>Page 1 of 1 |
| <b>PERSONNEL ORDER NO.</b>                |

|                                 |                                   |                             |                                     |                                |
|---------------------------------|-----------------------------------|-----------------------------|-------------------------------------|--------------------------------|
| <b>RANK/TITLE</b><br>SGT        | <b>SURNAME,</b><br>RIVERA         | <b>FIRST</b><br>JONATHAN    | <b>M.I.</b><br>G                    | <b>COMMAND</b><br>052 PRECINCT |
| <b>SHIELD NO.</b><br>2049       | <b>TAX REGISTRY NO.</b><br>949550 | <b>SOCIAL SECURITY NO.</b>  | <b>DATE APPOINTED</b><br>07/06/2010 |                                |
| <b>RANK/NAME OF COMPLAINANT</b> |                                   |                             |                                     | <b>COMMAND</b>                 |
| <b>DATE OF CHARGES</b>          |                                   | <b>DATE TRIAL COMMENCED</b> |                                     | <b>DATE TRIAL CONCLUDED</b>    |
| <b>TRIAL COMMISSIONER</b>       |                                   |                             |                                     |                                |

| SPECIFICATION                                                                                                                                                                                                                                                                                                                             | DISPOSITION    | RECOMMENDED PENALTY<br>PLEA [X ] TRIAL [ ]                             |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|------------------------------------------------------------------------|
| 1 . Sergeant Jonathan Rivera, on or about April 11, 2019, at approximately 1000, while assigned to 052 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) bedroom inside § 87(2)(b) without sufficient legal authority.  | PLEADED GUILTY | REPRIMAND 1.00 - It is recommended that the Respondent be Reprimanded. |
| 2 . Sergeant Jonathan Rivera, on or about April 11, 2019, at approximately 1000, while assigned to 052 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) bedroom inside § 87(2)(b) without sufficient legal authority. | PLEADED GUILTY |                                                                        |

  
FIRST DEPUTY COMMISSIONER

  
DATE

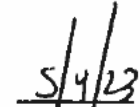
**POLICE COMMISSIONER'S APPROVAL**

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

  
POLICE COMMISSIONER

  
DATE



## POLICE DEPARTMENT

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

April 21, 2023

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) / CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) / CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendations of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matters involving the above officers. It was determined that the CCRB recommendations of "Training" are appropriate in this matter. However, while formalized training will properly address the substantiated allegations and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications are not warranted in cases where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in these matters and Police Officer Eusebio, Detectives Berisha and Echevarria, Sergeant Manney, and Lieutenant Rivera will receive the formalized training appropriate in connection with their respective substantiated allegations.

Yours truly,

Lourdes Soto  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

cc: John Tynan, Esq.  
Matthew Schieffer, Esq.  
Michael Martinez, Esq.

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ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
[www.nyc.gov/ccrb](http://www.nyc.gov/ccrb)



ARVA RICE  
INTERIM CHAIR

April 28, 2023

The Honorable Keechant L. Sewell  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 201903406 (Incident Date: April 11, 2019) involving Lieutenant Jonathan Rivera, Tax No. 949550 (DADS No. 2021-23395) I CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Police Officer Ariel Eusebio, Tax No. 958565 (DADS No. 2020-22200) / CCRB Case No. 201800538 (Incident Date: January 17, 2018) involving Detective Tomor Berisha, Tax No. 953678 (DADS No. 2019-20140) and Detective John Echevarria, Tax No. 953836 (DADS No. 2019-20141) I CCRB Case No. 201907401 (Incident Date: August 18, 2019) involving Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23950)

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated April 21, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that the recommended penalty of “Training” was appropriate but did not require the imposition of charges & specifications against all five respondents.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve these cases today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is positioned above a horizontal line.

Jonathan Darche  
Executive Director  
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.  
Matthew Schieffer, Esq.  
Michael Martinez, Esq.